Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, November 27, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

Mayor Collier called the closed session meeting to order at 6:00 p.m.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Closed Session (6:00 p.m.)

3. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That Council convene to a Closed Session pursuant to Section 239 (2) (e) of the *Municipal Act, 2001,* as amended, to discuss a matter pertaining to litigation or potential litigation, including matters before administrative tribunals, affecting the municipality or local board.

CARRIED

3.1 **Central Park Ajax – Receivership Update**

Open Meeting (6:35 p.m.)

Ratify Actions Taken in Closed Session

Moved by: N. Henry
Seconded by: M. Crawford

That all directions approved during the Closed Session be ratified.

CARRIED

Council recessed at 6:36 p.m.

Council resumed at 7:00 p.m.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

Mayor Collier acknowledged Regional Councillor Dies contributions to Ajax Council and congratulated her on 20 years of service.

4. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the minutes of the Regular Meeting of Council held on October 23, 2023 be adopted.
CARRIED

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the minutes of the Closed Meeting of Council held on October 23, 2023 be adopted.
CARRIED

5. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

6. Delegations, Presentations, and Public Meetings

With the consent of Members present, item 6.4 was advanced in the order business.

6.4 Presentation: 2023 Library Bookmark Contest Winners

Sarah Dodge, Coordinator of Community Engagement, Ajax Public Library, noted that October 16-20th was Ontario Public Library Week and 2023 was the thirteenth year of the Ajax Public Library's Bookmark Contest with 178 submissions received. S. Dodge introduced the winners of this year's contest and thanked Council for the opportunity to recognize the contest participants. Regional Councillor Lee, Library Board Chair, Mayor Collier, and Sarah Vaisler, Chief Librarian and Executive Officer, presented certificates to each of the winners.

6.1 Delegation: Sloan's House

Jason Hunt, Board Chair, Sloane's House and Katie Cronin-Wood, Board Director, Sloane's House, provided an update on the progress of bringing a Pediatric Respite and Hospice Care Centre to Durham Region. J. Hunt and K. Cronin-Wood discussed the vision and mission of Sloane's House, the importance of respite care, hospice services, palliative care, the need for hospice services in Durham Region, the impacts on families, strategic directions for the future, support for the organization, stakeholder outreach, current programs, and partnerships.

Council Members asked questions regarding the fundraising campaign namely campaign duration and campaign targets, site location, and site services. J. Hunt responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked J. Hunt and K. Cronin-Wood for their delegation.

6.2 Delegation: Pickering Highschool Active in Our Community

Thomas Johnson, Student, Pickering Highschool Food Drive and Member, Leadership and Put into Practice (PIP), discussed community initiatives in support of Feed the Need in Durham, food insecurity, food drive events including in-school collection, drive-through food drive and Halloween bake sale, and results. Sarah Leaney, Teacher and Students 4 Change Advisor, Pickering Highschool, discussed food insecurity, the need for support in Durham Region, and community partnerships. T. Johnson provided an overview of the partnership between Pickering Highschool Leadership and Put into Practice (PIP), PIP's mission, fall events including a haunted house and pumpkin patch, and PIP fundraising for The Centre for Addiction and Mental Health (CAMH).

Council Members asked questions regarding outreach initiatives, fundraising results, historical fundraising trends, and PIP objectives. T. Johnson and S. Leaney, responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked T. Johnson and S. Leaney for their delegation.

6.3 **Presentation: Pickering Nuclear Generating Station**

Emily Tarle, Deputy Vice President, Pickering Nuclear Generating Station, presented Ontario Power Generation's (OPG) annual report on the Pickering Nuclear Generating Station. E. Tarle discussed OPG performance and accomplishments, economic and environmental benefits, innovative programs and initiatives, unit performance, equity, diversity and inclusion initiatives, refurbishment feasibility, next steps and timelines, nuclear power, and community initiatives.

Council Members asked questions regarding isotope production, strategies to bridge the energy gap, community support, and decommissioning activities. E. Tarle responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked E. Tarle for her presentation.

6.5 **Presentation: Library Services 2023 Fall Update**

Sepelene Deonarine, Vice-Chair of Ajax Public Library Board, presented the Library Services 2023 Fall Update. S. Deonarine discussed key performance metrics, safety and incident reports, education and literacy programming, Ajax archives, unique library spaces including Muteboxes at the Main Branch and the Audely Branch Reading Garden, and the grand opening of the Library Makerspace.

Members of Council asked questions regarding safety and incident tracking, incident types, decodable books, and Makerspace activities. S. Vaisler, Chief Librarian and Executive Officer, responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked S. Deonarine and S. Vaisler for their presentation.

With the consent of Members present, item 8.4.1 was advanced in the order business.

8.4 **Departmental Reports**

8.4.1. **APL-2023-04: Library Services 2023 Fall Update**

Moved by: J. Dies
Seconded by: L. Bower

1. That the Library Services 2023 Fall Update be received for information.

CARRIED

6.6 **Public Meeting: Official Plan Amendment Application OPA23-A2**
Zoning By-law Amendment Z2/23
Promita Holdings Ltd.
310 Kingston Road East

Mayor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA23-A2 and Zoning By-law Amendment Application Z2/23 are being brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, "Provincial Priorities".

Mayor Collier summarized the fundamental elements of the proposed by-laws.

Council Members asked questions regarding construction timelines and modifications to public/social elements. Eric Simpson, Senior Planner, responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

There being no questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Max and Denis Tarsky, Ledim Developments Ltd., owners/applicants, discussed projected construction timelines and provided rationale for amendments to public/social elements.

Council Members asked questions regarding Durham-Scarborough Bus Rapid Transit (BRT) impacts on construction. M. and D. Tarsky responded to questions from Council Members.

7. Correspondence

Members separated correspondence items 7.6, 7.7 and 7.12 for discussion.

Moved by: J. Dies
Seconded by: M. Crawford

That the balance of the report (Items 7.1, 7.2, 7.3, 7.4, 7.5, 7.8, 7.9, 7.10, 7.11 and 7.13) dated November 27, 2023 containing Items of Correspondence be received for information.

CARRIED

Items 7.6, 7.7 and 7.12

Council Members expressed support for Bill 21, Fixing Long-Term Care Amendment Act, 2022.

Moved by: L. Bower
Seconded by: S. Lee

That Item 7.6 ("Township of East Hawkesbury – Requesting Support for Bill 21, Fixing Long-Term Care Amendment Act (Till Death Do Us Part), 2022"), Item 7.7 ("Municipality of North Perth – Support for Bill 21, Fixing Long-Term Care Amendment Act (Till Death Do Us Part), 2022"), and Item 7.12 ("City of Cambridge – Support for Bill 21, Fixing Long-Term Care Amendment Act") of the Correspondence Report be endorsed.

8. Reports

8.1. Community Affairs & Planning Committee Report

8.1.1 Community Affairs & Planning Committee, October 2, 2023

None

8.2. General Government Committee Report

8.2.1 General Government Committee, November 20, 2023

Moved by: N. Henry
Seconded by: J. Dies

That the General Government Committee Report dated November 20, 2023 be adopted.

CARRIED

8.3 Summary of Advisory Committee Activities

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the Summary of Advisory Committee Activities Report dated November 27, 2023, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

8.4 Departmental Reports

Motion to Suspend the Rules of Procedure

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the Rules of Procedure be suspended to allow the introduction of two reports without notice:

- OES-2023-21: RFT No. T23033 – Power Street Sweeping Services
- OES-2023-22: RFT No. T23039 – Pick Up Trucks

CARRIED
on 2/3rds

8.4.2 **OES-2023-21: RFT No. T23033 – Power Street Sweeping Services**

Moved by: R. Tyler Morin
Seconded by: S. Lee

1. That Staff rescind the previous contract awarded to Green Maples Environment Inc. for Power Street Sweeping Services.

2. That Council award the Contract for Power Street Sweeping Services, to Almon Equipment Ltd. in the estimated amount of $297,755.00 (inclusive of all taxes), for a period of 1 year.

3. That Council authorize Staff to renew the Contract for an additional two, 1 year periods, pending an analysis and satisfactory performance review at the anniversary date of the Contract, in the estimated amount of $575,367.75 (inclusive of all taxes).

CARRIED

8.4.3 **OES-2023-22: RFT No. T23039 – Pick Up Trucks**

Council Members asked questions regarding contract award results and opportunities to debenture finance the assets in the future. Dave Meredith, Director of Operations & Environmental Services and Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: L. Bower

1. That Staff award the contract for Pick Up Trucks, to Blue Mountain Chrysler Ltd. in the amount of $421,110.32 (inclusive of all taxes).

2. That Council approve funding of $379,222.89, to be allocated to Capital Account No. 23005001 from the Development Reserve.

CARRIED

9. Regional Councillors' Report

There were no Regional Councillors' reports.

Moved by: L. Bower
Seconded by: M. Crawford

That the Regional Councillors' Reports of November 27, 2023 be received for information.

CARRIED

10. Business Arising from Notice of Motion

10.1 **Town of Ajax Lobbyist Registry**

Councillor Henry and Regional Councillor Dies introduced the motion and reviewed its contents.

Moved by: N. Henry
Seconded by: J. Dies

WHEREAS Section 223.9 of the Municipal Act allows municipalities to establish a lobbyist registry and code of conduct which governs lobbying activities directed at members of Council, advisory boards, staff, and individuals hired or selected to represent Town interests;

AND WHEREAS lobbyist registries are an optional mechanism;

AND WHEREAS several Ontario municipalities, including the City of Toronto, the City of

Pickering, and the Region of Niagara, have established a lobbyist registry framework;

NOW THEREFORE BE IS RESOLVED THAT:

Ajax Council directs Legislative Services staff to report to Council, or the appropriate standing committee, no later than the end of March 2024, on lobbyist registry framework options, impacts, and associated costs.

CARRIED

10.2 **Support for Adults with Autism Spectrum Disorder (ASD)**

Regional Councillor Lee and Councillor Bower introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: L. Bower

WHEREAS the bulk of government funded programs for individuals with Autism Spectrum Disorder (ASD) end at age 18 in Ontario;

AND WHEREAS families supporting a loved one with ASD are often forced to make the difficult decision between expensive private day programs and leaving the workforce to provide care;

AND WHEREAS getting out of the home and connecting with others can alleviate social isolation, improve mental and physical health, and lead to an overall better quality of life;

AND WHEREAS Autism Home Base, based in Bowmanville and with weekly drop-ins at McLean Community Centre in Ajax, provides supports and services to 191 Durham Region families, or more than 450 participants, five days a week;

AND WHEREAS by supporting programs for adults with ASD, the Government of Ontario can achieve its goal of keeping patients healthy in their communities and out of hospitals, as noted in the Ministry of Health's 2022-2023 Strategic Plan;

NOW THEREFORE BE IT RESOLVED THAT:

Ajax Council formally requests that the Government of Ontario provide core funding for organizations providing programs, care, and services for adults with ASD, including Autism Home Base, as part of the 2024 Provincial Budget; and

A copy of this resolution be forwarded to Premier Doug Ford, Minister Health Sylvia Jones, Minister Finance Peter Bethlenfalvy, Minister Mental Health and Addictions Michael Tibollo, Ajax MPP Patrice Barnes, the Region of Durham, the lower tier Durham municipalities, local school boards, the Association of Municipalities of Ontario, and Autism Ontario.

CARRIED

10.3 **Updating Permitted Uses in Employment Zones**

Mayor Collier and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: S. Lee

WHEREAS on February 27, 2023, Council adopted a resolution entitled "Updating Permitted Uses in Employment Zones", directing staff to update the Town's Official Plan and Zoning By-law to not permit new public storage facilities, motor vehicle gas bars and washing establishments in any zone;

AND WHEREAS it would be more cost effective to examine permissions for public storage facilities, motor vehicle gas bars and washing establishments through current and upcoming planning studies.

NOW THEREFORE BE IT RESOLVED THAT:

1. That the resolution from February 27, 2023, regarding Updating Permitted Uses in Employment Zones be rescinded; and

2. Planning and Development Services staff continue work through the Comprehensive Zoning By-law Review to align the Prestige Employment (PE) Zone with the Prestige

Employment designation in the Ajax Official Plan to prohibit public storage facilities; and

3. Planning and Development Services staff amend policy framework to no longer allow new motor vehicle gas bars and washing establishments as part of the upcoming Official Plan Review.

CARRIED
on 2/3rds

10.4 **Committing to More Housing-Advancing Initiatives**

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding municipal funding application requirements, eligible applicants, direct funding allocations to the Region, application process and next steps, surplus land inventory, and anticipated response timelines. Kassandra Cruciano, Senior Advisor, Grants & Partnerships, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS the Town of Ajax has applied for approximately $43.5 million from the Housing Accelerator Fund (HAF) to invest in community-related infrastructure, programs, and studies that support housing through the submission of seven key initiatives previously presented to Council;

AND WHEREAS the HAF grant program represents an opportunity for the Town to refine the policies, procedures and processes to encourage development to increase Ajax's housing supply;

AND WHEREAS Ajax Council is using every tool available to address the housing crisis, including introducing 4 units as of right zoning permissions, requesting Community Infrastructure and Housing Accelerator orders to advance 4,100 housing units, utilizing the Strong Mayor tool to advance two 60 story towers in the Major Transit Station Area (MTSA), and various of staff improvements and policy updates;

AND WHEREAS in consultation with Canada Mortgage and Housing Corporation (CMHC), which is managing the HAF fund, further housing-advancing initiatives have been identified as beneficial to the success of the Town's application;

NOW THEREFORE BE IT RESOLVED THAT:

1. Planning and Development staff be directed to undertake the following actions:

    - Introduce reduced parking rates Town-wide, particularly in the MTSA and related to ADUs, based on peak demand and including reduced rates where developments provide items such as carpool spaces and shower facilities for active transportation users, both of which reduce parking demand; and
    - Identify and increase height restrictions in the MTSA, also known as the Go Transit Station Mixed Use Area, which is identified as one of the Town's intensification areas and is intended to introduce a mix of uses that take of advantage of transit accessibility in the vicinity of the Ajax GO Station and support the surrounding employment lands; and
    - As part of the secondary plan for the Uptown Regional Centre, along the Durham-Scarborough BRT corridor, explore increasing heights and density permissions; and
    - As part of the surplus public land inventory initiative, foster partnership with the Region's new Affordable Housing Development and Renewal Department to identify and advance affordable housing projects in the Town; and
    - As part of the accessory dwelling unit (ADU) initiative, update the ADU Building Permit Package, including simple design examples prepared by a qualified individual(s), and work with Communication staff to socialize the updated information to encourage the building of ADUs by residents; and

2. Utilize HAF funds to establish a contract Affordable and Supportive Housing Development Liaison position to:

    - Provide application guidance, policy development and partnership facilitation between the Town, the Region, non-profit community housing providers and for-

profit developers to deliver purpose-built rental housing, special needs housing, community housing and housing projects with affordable units in Ajax; and

- Explore the feasibility of grant or incentive programs using HAF funding to further encourage and increase the building of special needs housing, community housing and housing projects with affordable units in Ajax to exceed Ontario's 5% target.

3. A copy of this motion be circulated to the Right Honourable Justin Trudeau, Prime Minister of Canada, the Honourable Sean Fraser, Federal Minister of Housing, Infrastructure and Communities, the Honourable Mark Holland, MP for Ajax, the Honourable Paul Calandra, Ontario Minister of Municipal Affairs and Housing, Patrice Barnes, MPP for Ajax, John Henry, Durham Regional Chair, and Durham Regional Council.

CARRIED

11. By-laws

Council Members asked questions regarding By-law 67-2023 ("Pickering Village Community Improvement Plan Amendment By-law"). G. Romanowski, Director of Planning & Development Servies, responded to questions from Council Members.

Moved by: R. Tyler Morin
Seconded by: L. Bower

That By-law numbers 62-2023 to 68-2023 be read a first, second and third time and passed.

CARRIED

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law numbers 69-2023 to 70-2023 be read a first, second and third time and passed.

CARRIED
on 1/3rd

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting on December 5th, the Durham Region capital and operating budget on January 15th, Town of Ajax trivia challenge on December 7th, holiday market events including Hockey Helps the Homeless on December 1st, Durham Outlook for the Needy on December 1st, Black Queens of Durham Region 2023 holiday pop up market on December 2nd-3rd, BMK holiday market on December 9th, the 5th annual Durham Region holiday pop-up market on December 10th, and Ajax Holiday Fest on December 16th.

14. Confirming By-Law

Moved by: L. Bower
Seconded by: M. Crawford

That By-law number 71-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on November 27, 2023, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the November 27, 2023 meeting of the Council of the Town of Ajax be adjourned (9:03 p.m.)

CARRIED

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Mayor

_____
D-Clerk